

IN THE UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF FLORIDA

JUDY ROBERTS,	)	
Plaintiff,	)	
	)	Case No.
v.	)	
	)	
ROSE ACRE FARMS, INC. dba HYDE	)	JURY TRIAL DEMANDED
COUNTY EGG; MORAN FOODS, LLC,	)	
Individually, and as Successor in Interest to	)	
SAVE-A-LOT, LTD., SAVE-A-LOT FOOD	)	
STORES, LTD., Individually, and as	)	
Successor in Interest to COBURN FARMS,	)	
Defendants.	)	

COMPLAINT

Plaintiff, JUDY ROBERTS, by and through her attorneys of record, Rebecca S. Vinocur, P.A. and for their causes of action against Rose Acre Farms, Inc. dba Hyde County Egg, Moran Foods, LLC, individually, and as Successor in Interest to Save-A-Lot, LTD, and Save-A-Lot Food Stores, LTD, individually, and as Successor in Interest to Coburn Farms (“Defendants”), states and alleges as follows:

PARTIES

1. At all times relevant to this action, Plaintiff Judy Roberts resided in Perry, Taylor County, Florida. Plaintiff is a citizen of the State of Florida.
2. At all times relevant to this action, Defendant, Rose Acre Farms, Inc., was an Indiana corporation with its principal place of business located at 1657 West Tipton Street, Seymour, Indiana 47274. Rose Acre Farms, Inc. is a citizen of the State of Indiana. The contaminated food products that caused this *Salmonella* outbreak were manufactured by Rose Acre Farms, Inc. under the business name of Hyde County Egg, located at 1560 Hyde Park Canal Road, Pantego,

NC 27860. At all times relevant to this action, Rose Acre Farms, Inc., was a manufacturer, producer, distributor, and/or seller of a wide-variety of food stuffs and other custom manufactured products, including the contaminated egg products that caused this *Salmonella* outbreak, to customers across the country.

3. At all times relevant to this action, Defendant, Save-A-Lot Food Stores, LTD., individually, and as Successor in Interest to Coburn Farms (“Coburn Farms”), was a Missouri corporation with its principal place of business located at 100 Corporate Office Dr., Earth City, MO, 63045. Save-A-Lot Food Stores, LTD. is a citizen of the State of Missouri. The contaminated egg products that caused this *Salmonella* outbreak were sold by Safe-A-Lot Food Stores, LTD. At all times relevant to this action, Save-A-Lot Food Stores, LTD. was a retailer, producer, manufacturer, distributor, and/or seller of a wide-variety of food stuffs and other custom manufactured products to customers in the Midwest and East Coast including the contaminated egg products that caused this *Salmonella* outbreak.

4. At all times relevant to this action, Defendant, Moran Foods, LLC, individually, and as Successor in Interest to Save-A-Lot, LTD, was a Missouri corporation with its principal place of business located at 100 Corporate Office Dr., Earth City, MO, 63045. Save-A-Lot Food Stores, LTD. is a citizen of the State of Missouri. The contaminated egg products that caused this *Salmonella* outbreak were sold by Safe-A-Lot Food Stores, LTD. At all times relevant to this action, Save-A-Lot Food Stores, LTD. was a retailer, producer, manufacturer, distributor, and/or seller of a wide-variety of food stuffs and other custom manufactured products to customers in the Midwest and East Coast including the contaminated egg products that caused this *Salmonella* outbreak.

JURISDICTION AND VENUE

5. This Court has jurisdiction over the subject matter of this action pursuant to 28 USC § 1332(a) because the matter in controversy exceeds \$75,000, exclusive of costs and it is between citizens of different states (Florida, Indiana, and Missouri). Further, Defendant Rose Acre Farms contracted with Hyde County Egg (located in North Carolina) to produce and provide the food product at issue to Save-a-Lot Food Stores, LTD., thereby purposefully availing itself of the Florida marketplace. Further, Defendants purposely availed themselves of the Florida marketplace. Save-A-Lot Food Stores, LTD. built and operated grocery stores in Florida with Moran Foods, LLC, who operates under the business name of Save-A-Lot, LTD., including the grocery store that sold the *Salmonella*-contaminated eggs at issue in this matter. Rose Acre Farms, Inc. distributed and sold eggs to retailers in Florida, including the *Salmonella*-contaminated eggs at issue in this matter.

6. Venue in the United States District Court for the Southern District of Florida is proper pursuant to 28 USC § 1391(a)(1) and (2) because the Defendants are subject to personal jurisdiction in this judicial district at the time of the commencement of the action, because a substantial part of the events or omissions giving rise to the Plaintiff's claims and causes of action occurred in this judicial district, and as Defendant Moran Foods, LLC's registered agent is located in Plantation, Florida.

FACTS

A. The 2018 *Salmonella* Outbreak Caused by Eggs Manufactured by Rose Acre Farms, Inc. and Sold by Save-A-Lot Food Stores, LTD. and Moran Foods, LLC

7. On April 13, 2018, the Food and Drug Administration (FDA) announced Rose Acre Farms, Inc.'s recall of 206,749,248 shell eggs due to contamination with *Salmonella*. At the time of the recall, 22 cases of *Salmonella* illness were linked to Rose Acre Farms, Inc.'s eggs. The recall further noted that the affected eggs came from plant number P-1065 and P-1359. The FDA

further noted that the affected shell eggs were sold under several brand names, including: Coburn Farms, Country Daybreak, Food Lion, Glenview, Great Value, Nelms, Sunshine Farms, Publix, and Sunups.

8. During this time, the FDA announced its own investigation into a multi-state outbreak of *Salmonella* illnesses linked to shell eggs from Rose Acre Farms, Inc.'s Hyde County Egg location in Hyde County, North Carolina.

9. FDA investigators inspected Rose Acre Farm, Inc.'s Hyde County Egg farm between March 26, 2018 through April 11, 2018 and collected samples for testing. The FDA analyzed the samples, which revealed that the same rare strain of *Salmonella* that caused the illnesses was present at the Hyde County Egg facility, tying the facility to the outbreak.

10. During the inspection, FDA investigators observed unsafe and unsanitary conditions and practices, including, but not limited to:

- a. ongoing rodent infestation within a poultry house;
- b. dead rodents on the ground in poultry houses;
- c. unacceptable rodent activity within a poultry house;
- d. unsatisfactory rodent control;
- e. unsanitary conditions and poor employee practices observed in the egg processing facility;
- f. condensation dripping from the ceiling, pipes, and down walls, onto production equipment;
- g. maintenance and sanitation employees placing buffers (food contact) and metal covers to the egg packer with buffers (non-food contact) onto floor, pallets, and equipment that was visibly dirty with accumulated grime and food debris;

- h. production and maintenance employees touching non-food contact surfaces (i.e. face, hair, intergluteal cleft, production equipment with accumulated grime and food debris, floor, boxes, trash cans, inedible transport cans) and then touching shell eggs and food contact surfaces (i.e. buffers, rollers, etc.) without changing gloves or washing hands;
 - i. steel wool scrubber (used to clean processing equipment) stored on a cart in a dustpan that had a pool of water and egg mix with floating food debris and grime; and
 - j. flying insects throughout the egg processing facility, including a cloud of insects.
11. On April 16, 2018, the Centers for Disease Control and Prevention (CDC) announced the multi-state outbreak of *Salmonella* illnesses linked to the consumption of shell egg products from Rose Acre Farms, Inc. At the time of this announcement, the CDC noted 23 illnesses from 9 states.
12. On the same day, Cal-Maine Foods, Inc. issued its own recall of shell egg products related to the outbreak.
13. According to the CDC's May 13, 2018 update, 35 people infected with the outbreak strain of *Salmonella* have been reported from 9 states. The number of ill people identified in each state is as follows: Colorado (1), Florida (2), New Jersey (1), New York (8), North Carolina (5), Pennsylvania (6), South Carolina (3), Virginia (8), and West Virginia (1).
14. Eleven ill people have been hospitalized. About fifty percent of those ill are female. Illnesses reported to the CDC started on dates ranging from November 16, 2017 to April 14, 2018. Ill people range in age from 1 to 90 years, with a median age of 65.
15. Illnesses that occurred after March 23, 2018, might not yet be reported to the CDC due to

the time it takes between when a person becomes ill with *Salmonella* and when the illness is reported. This takes an average of two to four weeks.

16. The epidemiologic evidence available to investigators at this time indicates that shell egg products from Rose Acre Farms, Inc. are the source of this *Salmonella* outbreak. In interviews conducted by state and local health department officials, ill people or their family members answered questions about the foods they ate and other exposures in the week before they became ill. Twenty-two (88%) of 25 people interviewed reported eating shell eggs. Sixteen people (64%) reported eating various egg dishes at different restaurants. The CDC reports that these results are significantly higher than those from typical surveys.

17. On May 4, 2018, the FDA announced a list of domestic consignors who further distributed the products to foreign consignees. The affected egg products may also have been distributed internationally.

18. CDC and FDA continue to recommend consumers, restaurants, and retailers should not eat, serve, or sell recalled eggs produced by Rose Acre Farms, Inc.'s Hyde County farm which bears the name Hyde County Egg.

19. Certain Save-A-Lot Food Stores, Inc.'s retail store locations in Florida sold *Salmonella*-contaminated shell eggs from Rose Acre Farms, Inc. to Florida consumers.

20. Upon information and belief, Coburn Farms is a private label, trademarked brand of Save-A-Lot Food Stores, Inc. and the producer of the affected shell eggs linked to this outbreak.

21. Multiple other retail foodservice locations nationally (including Wal-Mart and Food Lion, among others) have also sold the contaminated shell eggs from Rose Acre Farms, Inc. and have had customers who have become ill as a result of consuming shell eggs.

22. As of filing this complaint, the CDC and FDA's investigations are still ongoing.

B. *Salmonella*

23. The term *Salmonella* refers to a group or family of bacteria that cause illness in humans. *Salmonella* lives in the intestinal tracts of humans and other animals, including poultry. But the type of *Salmonella* that may not make poultry sick can make humans very ill.

24. Currently, the Centers for Disease Control and Prevention (CDC) recognize two species, which are divided into six subspecies. These subspecies are divided into over 50 serogroups based on somatic (O) antigens present.

25. The most common *Salmonella* serogroups are A, B, C, D, E, F, and G. Serogroups are further divided into over 2,500 serotypes. *Salmonella* serotypes are typically identified through a series of tests of antigenic formulas listed in a document called the Kauffmann-White Scheme published by the World Health Organization Collaborating Centre for Reference and Research on *Salmonella*.

26. *Salmonella* bacteria are typically transmitted to humans by food or water contaminated with feces. Such foods usually look and smell normal. Nothing about the products look, taste, or smell would warn a consumer that it was contaminated with *Salmonella* bacteria.

27. After exposure, *Salmonella* bacteria travel to the lumen of the small intestines, then penetrate the epithelium, multiply, and enter the blood. This infection process – also referred to as the incubation period – usually takes 6 to 72 hours for the onset of symptoms. According to the CDC, as little as one cell of *Salmonella* bacteria can cause infection.

28. The acute symptoms of *Salmonella* gastroenteritis (or Salmonellosis) include nausea, vomiting, diarrhea, fever, abdominal cramping and/or stomach pain, headache, dysuria, muscle pain, fatigue, and dehydration.

29. Doctors typically treat the symptoms of Salmonellosis with anti-nausea or anti-diarrhea

medications. Some physicians may prescribe antibiotics. Many severe cases may require intravenous fluids for treatment of dehydration, usually in an emergency room or urgent-care setting.

30. *Salmonella* infections may also cause long-term side-effects, such as Reactive Arthritis (RA), Septicemia, Bacteremia, chronic gallbladder infection, and Irritable Bowel Syndrome (IBS) can develop, requiring extensive ongoing medical treatment and care. The elderly, infants, and those with compromised immune systems are more likely to experience severe illness and long-term complications from exposure to *Salmonella* bacteria. *Salmonella* infections can be fatal.

C. Judy Roberts' *Salmonella* Infection Following Her Exposure to *Salmonella*-Contaminated Eggs Manufactured by Rose Acre Farms, Inc. and Sold by Save-A-Lot Food Stores, LTD. and Moran Foods, LLC

31. On or about March 23, 2018, Judy Roberts purchased shell egg products produced by Rose Acre Farms and packaged by Coburn Farms from her neighborhood Save-A-Lot store near Perry, Florida.

32. Throughout the week, Judy remembers eating the shell egg products manufactured, distributed, and/or sold by Defendants on various days preceding her *Salmonella* illness.

33. Judy began to have severe symptoms of *Salmonella* poisoning, including vomiting, severe diarrhea, and a fever.

34. Her symptoms continued to get worse to the point where she could no longer lift herself out of the bed.

35. On April 2, 2018, Judy's husband took her to the emergency room at Doctors Memorial Hospital, where she spent almost 4 days hospitalized.

36. On April 5, 2018, Judy was released to return home.

37. On April 11, 2018, Judy still had not recovered from her illness and continued to have worsening symptoms, including severe fatigue and diarrhea. So, she went to visit her primary care physician. It was during this visit, she learned that she tested positive for *Salmonella* bacteria.

38. The following morning, she returned to the hospital via ambulance. She spent an additional almost 3 days hospitalized. She was released home on April 14, 2018.

39. Judy continues to recover and faces uncertain future medical complications.

40. Judy is 70 years old, a diabetic, and a cancer survivor. She is among those in the high-risk group of severe food poisoning infections.

CAUSES OF ACTION

COUNT I

STRICT PRODUCT LIABILITY

41. Plaintiff incorporates the preceding paragraphs of this Complaint, by this reference, as if each of these paragraphs were set forth here in its entirety.

42. Defendants manufactured, produced, distributed, and sold the *Salmonella*-contaminated shell egg products that caused Plaintiff's *Salmonella* infection and injuries.

43. Defendants manufactured, produced, distributed, and/or sold a *Salmonella*-contaminated food product, including without limitation shell egg products, for sale to the public.

44. Food that is contaminated by *Salmonella* is unsafe when put to the use reasonably foreseeable considering the nature of the product. Namely, *Salmonella* contaminated food is unfit for human consumption.

45. The shell egg products that Plaintiff purchased and consumed, were contaminated with *Salmonella* when they left the control of Defendants. Plaintiff's consumption of the

contaminated food caused her to become infected by *Salmonella* and to suffer injuries as a direct and proximate result of that consumption.

46. Defendants are strictly liable to Plaintiff for the harm proximately caused by the manufacture, production, distribution, and/or sale of an unsafe and defective food product.

COUNT II

BREACH OF WARRANTY

47. Plaintiff incorporates the preceding paragraphs of this Complaint, by this reference, as if each of these paragraphs were set forth here in its entirety.

48. Plaintiff is a consumer.

49. Defendants are manufacturers, producers, distributors, and/or retailer who sell food products.

50. By offering shell egg products for sale to the public, Defendants impliedly warranted that such egg products were safe to eat, that they were not contaminated with a deadly pathogen (i.e. *Salmonella*), and that the shell egg products had been safely prepared under sanitary conditions.

51. Defendants breached their implied warranties about the food they manufactured and sold to Plaintiff, which was consumed by Plaintiff, causing Plaintiff's injuries and losses.

52. Plaintiff's injuries proximately and directly resulted from Defendants' breach of their implied warranties, and Plaintiff is thus entitled to recover for all actual, consequential, and incidental damages that flow directly and in a foreseeable fashion from these breaches.

COUNT III

NEGLIGENCE PER SE

53. Plaintiff incorporates the preceding paragraphs of this Complaint, by this reference, as if each of these paragraphs were set forth here in its entirety.

54. Defendants had a duty to comply with all applicable state and federal regulations intended to ensure the purity and safety of its food product, including, but not limited to, the requirements of the Federal Food, Drug and Cosmetics Act, 21 U.S.C. § 301 *et seq.*

55. Defendants failed to comply with the provisions of the health and safety acts identified above, and, as a result, was negligent *per se* in its manufacture, production, distribution, and/or sale of food adulterated with *Salmonella*, a deadly pathogen.

56. As a direct and proximate result of conduct by the Defendants that was negligent *per se*, Plaintiff sustained injuries and damages.

COUNT IV

NEGLIGENCE

57. Plaintiff incorporates the preceding paragraphs of this Complaint, by this reference, as if each of these paragraphs were set forth here in its entirety.

58. Defendants manufactured, produced, distributed, and/or sold shell egg products that were contaminated with *Salmonella*, a deadly pathogen.

59. Defendants owed a duty to all persons who purchased and consumed their products, including Plaintiff, to manufacture and sell shell egg products that were safe to eat, that were not contaminated with deadly pathogens, like *Salmonella*, and that were not in violation of important food safety regulations. Defendants breached their duty.

60. Defendants owed a duty to all persons who purchased and consumed their products, including Plaintiff, to ensure that any representations regarding the certifications its products had undergone prior to distribution and sale were made with reasonable care and were correct. Defendants breached this duty.

61. Defendants had a duty to comply with all statutes, laws, regulations, or safety codes

pertaining to the manufacture, production, distribution, storage, and sale of their food products, but failed to do so, and were therefore negligent. Plaintiff is among the class of persons designed to be protected by these statutes, laws, regulations, safety codes, and provision pertaining to the manufacture, production, distribution, storage, and sale of these food products and similar food products.

62. Defendants had a duty to comply with all applicable health regulations, including the FDA's Good Manufacturing Practices Regulations, 21 C.F.R. part 110, subparts (A)-(G), and all statutory and regulatory provisions that applied to the import, manufacture, distribution, storage, and/or sale of the product or product ingredients, including but not limited to, the Federal Food, Drug, and Cosmetics Act, § 402(a), as codified at 21 U.S.C. § 342(a), which bans the manufacture, sale and distribution of any "adulterated" food, and Florida Administrative Code 5K-4 through 5K-6, Chapter 64E-11, and Chapter 500 of the Florida Revised Statutes, which impose an identical ban.

63. Under both federal and applicable state law, food is adulterated if it contains a "poisonous or deleterious substance which may render it injurious to health."

64. Defendants breached the duties owed to the ultimate consumers of shell egg products by committing acts and omissions of negligence, including, but not limited to the following:

- a. Failed to adequately maintain or monitor the sanitary conditions of its products, premises, equipment and employees, and the products, premises, equipment, and employees of other entities in the supply chain of the subject shell egg products;
- b. Failed to properly operate its facilities and equipment in a safe, clean, and sanitary manner;
- c. Failed to apply its food safety policies and procedures to ensure the safety and

sanitary conditions of its food products, premises, and employees;

d. Failed to apply food safety policies and procedures that met industry standards for the safe and sanitary production of food products, and the safety and sanitary condition of its premises and employees;

e. Failed to prevent the transmission of *Salmonella* to consumers of its shell egg products;

f. Failed to properly train its employees and agents how to prevent the transmission of *Salmonella* on its premises, from its facility or equipment, or in its food products;

g. Failed to properly supervise its employees and agents to prevent the transmission of *Salmonella* on its premises, from its facility or equipment, or in its food products.

h. Failed to test its shell egg products for microbial pathogens, like *Salmonella*.

65. Defendants had a duty to comply with all statutory and regulatory provisions that pertained or applied to the manufacture, production, distribution, storage, labeling, and sale of its food products. Defendants breached this duty.

66. Defendants owed a duty to Plaintiff to use reasonable care in the manufacture, production, distribution, storage, and sale of its food products, to prevent contamination with *Salmonella*. Defendants breached this duty.

67. Plaintiff's injuries proximately and directly resulted from the negligence of Defendants, and from Defendants' violations of statutes, laws, regulations, and safety codes pertaining to the manufacture, production, distribution, storage, and sale of food.

COUNT V

DAMAGES

68. Plaintiff incorporates the preceding paragraphs of this Complaint, by this reference, as if each of these paragraphs were set forth here in its entirety.

69. Defendants' conduct was a direct, proximate, and producing cause of Plaintiff's injuries and damages, including but not limited to damages in the past and future for the following: pain and suffering, mental anguish, physical impairment, physical disfigurement, loss of enjoyment of life, medical and pharmaceutical expenses, travel and travel-related expenses, emotional distress, lost wages, lost earning capacity, loss of consortium, punitive and/or exemplary damages and attorneys' fees (to the extent recoverable) and other general, special, ordinary, incidental and consequential damages as would be anticipated to arise under the circumstances.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff prays for judgment against Defendants as follows:

1. Judgment for Plaintiff against Defendants for just compensation in a fair and reasonable amount for the damages set forth above;
2. Judgment for Plaintiff against Defendants for all such sums as shall be determined to fully and fairly compensate Plaintiff for all general, special, incidental and consequential damages incurred, or to be incurred, by Plaintiff as the direct and/or proximate result of the acts and omissions of the Defendants.
3. Punitive damages in an amount to be proven at trial.
4. Such additional and/or further relief, including without limitation interest, costs, and reasonable attorney fees, as this Court deems just, equitable, necessary and proper in the circumstances.

5. That the Court award Plaintiff the opportunity to amend or modify the provisions of this Complaint as necessary or appropriate after additional or further discovery is completed in this matter, and after all appropriate parties have been served; and

JURY TRIAL DEMAND

Plaintiff demands trial by jury on all issues raised herein.

Dated: May 14, 2018.

Respectfully submitted,

/s/ *Rebecca S. Vinocur*

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